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Sealed Highlighted Opening Brief

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 13 Filed April 15, 2026

Mateo Serrano files this protected companion through Celia Arden. It addresses the same sixteen subjects as the public brief but identifies controlled sentencing categories with inert names. Fact-Aster, Role-Beryl, Range-Cinder, History-Dovetail, Position-Echo, and Person-Fable refer only to fictional sealed material.

Two appellate questions arise from the judgment. The first concerns the three-level role adjustment and is preserved subject to enforcement of the broad appeal waiver. The second alleges that Judge Elara Venn imposed sentence without personally asking Serrano to speak, a claim the agreement specifically left available.

The requested rulings remain distinct. Enforcement may remove the enhancement issue without deciding the protected relationship evidence. The express exception nevertheless permits review of complete denial, including prejudice shown by mitigation that Serrano prepared but never presented in his own words. He seeks vacatur of the sentence and an unrestricted resentencing opportunity, not withdrawal of his guilty plea.

Jurisdiction and Timeliness

Count One arose within the district court's criminal jurisdiction under 18 U.S.C. § 3231. The court entered judgment on February 25. Fourteen days later, on March 11, Celia Arden delivered Serrano's notice directly to the district clerk. The notice was entered that day and the record was transmitted to this Court.

Sections 1291 and 3742 furnish the relevant appellate authority, subject to the parties' agreement about which claims Serrano surrendered. *Boutcher* treats a waiver as an enforceable limitation on claims rather than a destruction of appellate subject-matter jurisdiction. 998 F.3d 603, 608–09 (4th Cir. 2021).

Nothing in the protected record changes the filing date or suggests an alternative notice chronology. The parties can therefore address waiver coverage and the reserved procedural claim on the certified sequence. Serrano neither attacks the conviction nor alleges that Bram Ives or the fictional United States violated the plea bargain.

Jurisdiction over the judgment does not predetermine either target. The panel may dismiss a covered claim while retaining a claim expressly excluded from the waiver. That limited approach respects both the timely notice and the agreement without producing an unnecessary view of sealed role evidence.

Statement of the Case

Serrano admitted knowing participation in a conspiracy involving false reimbursement requests for unperformed services. The charged conduct ran from August 4 to November 2, 2025, against fictional Meridian Community Supply Cooperative. **Fact - Aster** contains the nonpublic offense narrative; this filing supplies no payment route, credential, claim field, or concealment method.

The presentence calculation used the 2025 Manual. All parties accepted a five-participant count and criminal-history category I. They contested a single factual inference: whether Serrano managed Alina Pared. **Role - Beryl** contains the competing characterizations. Judge Venn found limited supervision, applied § 3B1.1(b), and selected the offense level and range stored under **Range - Cinder**.

Defense counsel advocated for 24 months and described protected mitigation before the court imposed 36 months, three years of supervision, \$186,400 restitution, a \$100 assessment, and no fine. **History - Dovetail** and **Person - Fable** contain the sensitive details. Although Serrano had prepared remarks, no personal invitation preceded the sentence. The only later question directed to him concerned whether he understood appellate timing information.

Appeal-Waiver Text and Reservation

The plea provision first surrenders review of the conviction and any sentence on broadly framed grounds. Its reach expressly includes the statutory route commonly used for Guidelines challenges. A following limitation preserves an allegation that the sentencing judge entirely omitted the defendant's personal chance to allocute under the governing criminal rule.

Those propositions paraphrase the accepted term without duplicating it. The first captures an ordinary role-calculation dispute; the second describes a complete procedural omission.

Position-Echo records counsel's protected treatment of the provision, but no confidential fact is necessary to understand its grammar.

The placement of a specific exception after a general surrender gives each portion work to do. It would be equally mistaken to use the exception to revive every sentencing issue or to apply the general words as though the exception had never been written. The parties confirmed that distinction during the plea proceeding.

Accordingly, the panel can enforce the waiver only against the appellate target it covers. The person-management target may be dismissed if the government invokes the agreement and the validity requirements are met. The complete-denial target remains reviewable on its own terms and does not depend upon a breach theory.

Rule 11 Confirmation

Judge Venn personally examined Serrano about the waiver on November 18. She separated ordinary sentence challenges from the retained allocution claim, explained that continued disagreement with the role recommendation would not itself preserve an appeal, and asked Serrano to describe the exception in his own understanding.

Serrano confirmed that he was relinquishing Guidelines review and understood the special reservation to concern the total absence of a personal opportunity before sentence. He did not rely on Arden to answer for him. He also affirmed that no promised sentence or undisclosed assurance induced the plea.

Rule 11(b)(1)(N) requires this personal inquiry. Boutcher evaluates waiver enforcement de novo and asks whether agreement was knowing and intelligent. Smith, 134 F.4th 248, 255–61 (4th Cir. 2025), emphasizes the recorded explanation and the surrounding circumstances rather than a checkbox recital.

The protected materials do not undermine the colloquy. They instead show why scope must be target-specific. Serrano's informed surrender of a routine calculation challenge coexists with his informed retention of complete denial. The validity record cannot be used to broaden the waiver beyond the same distinction the judge carefully explained.

Severable Appellate Targets

The judgment supplies a common procedural vehicle, but it does not collapse every asserted error into one claim. The enhancement target concerns how the advisory range was calculated. The allocution target concerns the procedure preceding selection of the sentence. Different record material, review standards, and remedies apply.

Role-Beryl and **Range-Cinder** support identification of the first target. **History-Dovetail**, **Person-Fable**, and the hearing transcript support the second. The presence of sealed facts on both sides does not make the claims legally inseparable.

Ashford enforced a broadly worded sentence waiver against allocution where no negotiated exception displaced the general language. 103 F.4th 1052, 1056–57 (4th Cir. 2024). Here the writing includes the very limitation absent there. Respecting that difference permits the Court to screen the role issue without extinguishing the retained procedure claim.

Serrano therefore does not ask the panel to smuggle person-management merits through the exception. Should the government establish waiver enforcement, dismissal should be confined to the enhancement target and should state no view of the district court's factual choice. Litigation of complete denial can then proceed without reopening the dismissed issue in this appeal.

Standards of Review

The Court independently reviews whether the waiver was knowing and whether a particular appellate demand fits within the accepted words. *Boutcher*, 998 F.3d at 608–09. Smith supplies further guidance when the defendant questions the adequacy of the plea-court explanation. Scope remains an interpretive inquiry directed to the agreement actually made.

The absence of a sentencing objection makes plain-error review applicable to allocution. *Jennings*, 130 F.4th 157, 161–64 (4th Cir. 2025), recognizes an absolute opportunity subject to reasonable control once offered. *Muhammad*, 478 F.3d 247, 249–51 (4th Cir. 2007), addresses total omission and asks whether another sentence was possible.

A reviewable role decision would ordinarily present legal application together with a clear-error standard for the district court's factual finding. *Steffen*, 741 F.3d 411, 414–16 (4th Cir. 2013). The panel need not apply that merits standard when disposing of a covered target under the waiver.

Finally, remedial analysis follows the claim that survives. Complete denial with the required effect calls for a new sentencing proceeding. It does not call for reversal of the conviction or an appellate factual ruling on *Role-Beryl*.

Statutory Guidelines Target

The enhancement objection falls within the familiar category of sentence review described in 18 U.S.C. § 3742. It asserts that a disputed Guidelines provision changed the total offense level and advisory imprisonment range. **Range - Cinder** contains the protected two-track calculation adopted in the presentence materials.

Open-court figures show the consequence without exposing the report: level 20 yielded 33 to 41 months, while exclusion of the three disputed levels would have yielded level 17 and 24 to 30 months. The imposed 36-month term was within the adopted range.

Serrano's preservation of the objection below does not answer whether he retained appellate review. Preservation and waiver perform different functions. Nor does the fact that § 3742 authorizes review defeat a knowing contractual surrender that expressly refers to that statutory kind of claim.

The enhancement target remains identified so that a precise threshold disposition can be entered. If the waiver is enforced, dismissal rather than a merits affirmance is appropriate. If it is not, further merits treatment would follow ordinary procedure. The reserved allocution claim neither changes the target's statutory nature nor depends on the result of that threshold inquiry.

Role-Enhancement Scope

The only contested adjustment was the three-level manager-or-supervisor provision. Five people were criminally responsible: Serrano, Pared, Corin Bell, Darius Venn, and Nessa Holt. The controversy addressed Pared alone; no one claimed Serrano supervised the other three or relied exclusively on control of property.

Role-Beryl identifies a protected sequence that the government characterized as assigning a responsibility, communicating an expected result, checking completion, and addressing a deviation. The defense characterized the same material as requests and coordination between people who retained independent choice. This sealed summary remains deliberately nonoperational.

The district court credited the government's limited inference. An appellate challenge to that determination would dispute application of § 3B1.1(b) to a particular relationship. It therefore sits comfortably within the subject of sentence and Guidelines review addressed by the broad waiver.

Serrano preserves his contrary position but recognizes that scope precedes merits. A ruling that the target is covered should end appellate review of the adjustment without deciding which description of Role-Beryl is better. The separate complete-denial claim remains outside that inquiry because the agreement named it independently.

Person-Management Boundary

Section 3B1.1(b) required supervision or management of at least one responsible person. Steffen rejects reliance on property, assets, or activities alone and places the burden on the government to prove the interpersonal role by a preponderance. 741 F.3d at 414–16.

The 2025 Manual governs because the conspiracy continued beyond its November 1 effective date. Its current formulation preserves the person requirement. The lower court expressly limited its finding to Pared, acknowledged her discretion, and declined to infer authority over Bell, Darius Venn, or Holt.

The defense response stored under Role-Beryl disputed whether repeated requests and follow-up amounted to authority. The government's version emphasized direction of a defined responsibility. These facts explain why the issue is a conventional application dispute, but they are not submitted for appellate resolution on the threshold question.

If the panel enforces the agreement, it should not endorse either account. A dismissal states that Serrano surrendered the right to obtain a merits answer; it does not establish that the enhancement was correct. This distinction also leaves the sentencing court able to perform any lawful recalculation should the sentence later be vacated on the independent allocution ground.

Express Allocution Reservation

The exception concerns an entire failure to provide Serrano his own opportunity to speak before punishment was pronounced. It is narrower than every conceivable complaint about allocution and more specific than the broad sentence language that precedes it.

During the plea colloquy, Judge Venn confirmed that the reservation did not cover a disagreement about time limits, subject limits, or the Guidelines. Serrano answered that he understood. Bram Ives accepted that explanation for the fictional United States. No party now alleges that the government broke the agreement.

Ashford's generic provision reached an allocution issue because its text supplied no special exclusion. Serrano's clause does. Contractual scope under *Boutcher* must respect that negotiated difference. Otherwise the additional words and the separate Rule 11 questioning would serve no function.

Position-Echo marks protected advocacy applying the exception to the sentencing sequence. The legal proposition can be stated openly: a valid waiver may eliminate the enhancement appeal while leaving complete denial available. Serrano relies on the written reservation itself, not on a broad equitable override or an attempt to invalidate the plea.

Complete Denial at Sentencing

The critical sequence appears near the close of the sentencing hearing. Arden finished her reply, and Judge Venn asked whether counsel had anything else. After Arden and Ives declined, the judge announced that she would proceed to statutory analysis and sentence. She did not turn to Serrano or ask whether he wished to speak.

The court later imposed imprisonment, supervision, restitution, the special assessment, and no fine. Only after every term had been stated did it personally address Serrano, and then solely to confirm that he understood filing-time advice. His affirmative answer to that administrative question was not allocution.

Earlier, the court had asked whether Serrano could hear and consult with counsel. That preliminary exchange also contained no invitation to offer mitigation. Counsel's extensive presentation, including her description of a prepared statement, could not satisfy a rule that gives the defendant a personal voice.

Jennings permits management of remarks after an opportunity exists; it does not permit omission of the opportunity. Muhammad treats complete denial as plain error despite the absence of an objection when the record supports the necessary effect. The transcript here presents omission, not an allegedly inadequate or restricted speech.

Prejudice and Mitigation

History - Dovetail reflects a prepared apology directed to the cooperative and an account of structured, noncustodial treatment begun after the offense. The fictional records describe regular participation and a continuity plan. Serrano intended to accept harm without blaming Pared or minimizing the restitution obligation.

Person - Fable identifies recurring care and transportation for an unnamed adult relative with limited mobility, together with lawful work in a scheduling-and-inventory position. The caregiving was shared rather than irreplaceable. The employer remained unnamed, and the work involved neither claims processing nor financial accounts.

Arden presented these categories and requested 24 months. She also informed the judge that counsel could not reproduce Serrano's personal expression. The government sought 36 months, which the court imposed within a range extending to 41 months. The judge gave some mitigating weight by choosing below the upper endpoint.

These circumstances establish a genuine possibility that personal remarks could have changed the sentence. Muhammad does not demand certainty or a reconstructed speech. Serrano had concrete, relevant material ready to deliver, and the judge retained discretion over a substantial range. The complete omission deprived him of the chance to influence that choice.

Full Resentencing Remedy

The defect occurred before the sentence was selected and cannot be separated from the exercise of sentencing discretion. A later written submission or appellate-rights exchange would not place Serrano's voice before the judge at the required time. Muhammad therefore supports vacating the sentence and returning the case for resentencing.

On remand, the court should personally invite Serrano to speak and then reconsider the sentencing package. **Range-Cinder** would supply the advisory starting inquiry; **History-Dovetail** and **Person-Fable** would inform statutory factors; **Position-Echo** would identify the parties' positions. The ultimate term would remain for the district judge without any promise of reduction.

This full remedy does not revive a dismissed appellate merits target. If the enhancement challenge is removed under the waiver, the panel will have expressed no view on **Role-Beryl**. Vacatur for allocution instead restores the district court's ordinary responsibility to calculate the Guidelines and select a complete new sentence after hearing the defendant.

Serrano seeks no disturbance of the conviction and no direction that a particular sentence be imposed. He asks only that all components of punishment be reconsidered in the procedurally valid hearing contemplated by Rule 32.

Protected-Record Boundary

This filing is sealed because it draws on presentence-related sources and personal mitigation. It is paired with a public brief that substitutes categorical redactions at every protected subject. The public counterpart is not a partial presentence report and does not authorize access to this document.

The inert correspondences are fixed. **Fact-Aster** matches the public offense-fact notice. **Role-Beryl** matches the role-relationship notice. **Range-Cinder** matches the guideline-value notice. **History-Dovetail** matches mitigation detail. **Position-Echo** matches sentencing position. **Person-Fable** matches personal detail.

These names do not encode any real person or source. The protected discussion omits authentic provider information, employer identity, family identity, account numbers, payment routes, credentials, and offense mechanics. It supplies only the safe fictional material needed to assess waiver scope and allocution prejudice.

The district sealing designations remain intact on appeal. This brief may be considered with the sealed record but should not be quoted into a public filing in a way that defeats the companion's redactions. Its presence changes access, not the governing legal standards or the target-specific relief Serrano requests.

Conclusion

The accepted agreement created a broad rule and a deliberate exception. The role-enhancement dispute is an ordinary challenge to an advisory calculation. The complete omission of personal allocution is the separately retained procedural claim. The Court can give each target an exact disposition without treating the appeal as all or nothing.

If appellee timely invokes the waiver and the Court finds it enforceable, Serrano's enhancement target should be dismissed without a decision on **Role-Beryl**. The dismissal should not be described as affirmance of the district court's supervision finding. The allocution issue should remain for adjudication under Jennings and Muhammad.

The sentencing transcript shows no personal invitation before punishment. The mitigation protected by **History-Dovetail** and **Person-Fable**, the unheard prepared remarks, the defense request, and the discretionary range together demonstrate that a lower sentence was possible. Serrano accordingly requests vacatur of the sentence and remand for a complete resentencing after a genuine opportunity to speak.

Celia Arden signs for Serrano through the fictional Federal Defender Exercise Office for the Middle District of North Carolina. Protected service is made on Bram Ives through the synthetic court channel. No real contact detail, electronic credential, or filing-system access is supplied.